CETS# 22195

CONTRACT FOR SERVICES OF INDEPENDENT CONTRACTOR

A Contract Between the State of Nevada
Acting by and Through its

Agency Name:	**Department of Health and Human Services** **Division of Welfare and Supportive Services**
Address:	**1470 College Parkway**
City, State, Zip Code:	**Carson City, NV 89706**
Contact:	**Shannon Jones**
Phone:	**(775) 684-0676**
Email:	**dwsscontracts@dwss.nv.gov**

Contractor Name:	**Pondera Solutions, LLC.**
Address:	**80 Blue Ravine Road, Suite 250**
City, State, Zip Code:	**Folsom, CA 95630**
Contact:	**Sharie Kirsch**
Phone:	**(703) 628-8703**
Email:	**Sharie.kirsch@ponderasolutions.com**

WHEREAS, NRS 333.700 authorizes officers, departments, institutions, boards, commissions, and other agencies in the Executive Department of the State Government which derive their support from public money in whole or in part to engage, subject to the approval of the Board of Examiners (BOE), services of persons as independent contractors; and

WHEREAS, it is deemed that the service of Contractor is both necessary and in the best interests of the State of Nevada.

NOW, THEREFORE, in consideration of the aforesaid premises, the parties mutually agree as follows:

1. **REQUIRED APPROVAL.** This Contract shall not become effective until and unless approved by the Nevada State Board of Examiners.

2. **DEFINITIONS.**

   A. "State" – means the State of Nevada and any State agency identified herein, its officers, employees and immune contractors as defined in NRS 41.0307.

   B. "Contracting Agency" – means the State agency identified above.

   C. "Contractor" – means the person or entity identified above that performs services and/or provides goods for the State under the terms and conditions set forth in this Contract.

   D. "Fiscal Year" – means the period beginning July 1st and ending June 30th of the following year.

   E. "Contract" – Unless the context otherwise requires, "Contract" means this document entitled Contract for Services of Independent Contractor and all Attachments or Incorporated Documents.

   F. "Contract for Independent Contractor" – means this document entitled Contract for Services of Independent Contractor exclusive of any Attachments or Incorporated Documents.

3. **CONTRACT TERM.** This Contract shall be effective as noted below, unless sooner terminated by either party as specified in *Section 10, Contract Termination.* Contract is subject to Board of Examiners' approval (anticipated to be Date [October 8, 2019]).

Effective from:	January 1, 2020	To:	December 31, 2023

4. **NOTICE.** All communications, including notices, required or permitted to be given under this Contract shall be in writing and directed to the parties at the addresses stated above. Notices may be given: (i) by delivery in person; (ii) by a nationally recognized next day courier service, return receipt requested; or (iii) by certified mail, return receipt requested. If specifically requested by the party to be notified, valid notice may be given by facsimile transmission or electronic mail to the address(es) such party has specified in writing.

5. **INCORPORATED DOCUMENTS.** The parties agree that this Contract, inclusive of the following attachments, specifically describes the scope of work. This Contract incorporates the following attachments in descending order of constructive precedence:

ATTACHMENT A:	CONTRACT TERMS FOR PONDERA
ATTACHMENT B:	INSURANCE SCHEDULE
ATTACHMENT C:	SCOPE OF WORK
ATTACHMENT D:	DATA USE AGREEMENT
ATTACHMENT E	FEDERAL LAWS AND AUTHORITIES

Any provision, term or condition of an Attachment that contradicts the terms of this Contract for Independent Contractor, or that would change the obligations of the State under this Contract for Independent Contractor, shall be void and unenforceable.

6. **CONSIDERATION.** The parties agree that Contractor will provide the services specified in *Section 5, Incorporated Documents* at a cost as noted below:

Actual	per	Invoice

Total Contract Not to Exceed:	$838,730

The State does not agree to reimburse Contractor for expenses unless otherwise specified in the incorporated attachments. Any intervening end to a biennial appropriation period shall be deemed an automatic renewal (not changing the overall Contract term) or a termination as the result of legislative appropriation may require.

7. **ASSENT.** The parties agree that the terms and conditions listed on incorporated attachments of this Contract are also specifically a part of this Contract and are limited only by their respective order of precedence and any limitations specified.

8. **BILLING SUBMISSION: TIMELINESS.** The parties agree that timeliness of billing is of the essence to the Contract and recognize that the State is on a Fiscal Year. All billings for dates of service prior to July 1 must be submitted to the state no later than the third Friday in July of the same calendar year. A billing submitted after the third Friday in July, which forces the State to process the billing as a stale claim pursuant to NRS 353.097, will subject Contractor to an administrative fee not to exceed one hundred dollars ($100.00). The parties hereby agree this is a reasonable estimate of the additional costs to the state of processing the billing as a stale claim and that this amount will be deducted from the stale claim payment due to Contractor.

9. **INSPECTION & AUDIT.**

A. Books and Records. Contractor agrees to keep and maintain under generally accepted accounting principles (GAAP) full, true and complete records, contracts, books, and documents as are necessary to fully disclose to the State or United States Government, or their authorized representatives, upon audits or reviews, sufficient information to determine compliance with all State and federal regulations and statutes.

B. Inspection & Audit. Contractor agrees that the relevant books, records (written, electronic, computer related or otherwise), including, without limitation, relevant accounting procedures and practices of Contractor or its subcontractors, financial statements and supporting documentation, and documentation related to the work product shall be subject, at any reasonable time, to inspection, examination, review, audit, and copying at any office or location of Contractor where such records may be found, with or without notice by the State Auditor, the relevant State agency or its contracted examiners, the department of Administration, Budget Division, the Nevada State Attorney General's Office or its Fraud Control Units, the state Legislative Auditor, and with regard to any federal funding, the relevant federal agency, the Comptroller General, the General Accounting Office, the Office of the Inspector General, or any of their authorized representatives. All subcontracts shall reflect requirements of this Section.

C. Period of Retention. All books, records, reports, and statements relevant to this Contract must be retained a minimum three (3) years, and for five (5) years if any federal funds are used pursuant to the Contract. The retention period runs from the date of payment for the relevant goods or services by the state, or from the date of termination of the Contract, whichever is later. Retention time shall be extended when an audit is scheduled or in progress for a period reasonably necessary to complete an audit and/or to complete any administrative and judicial litigation which may ensue.

10. **CONTRACT TERMINATION.**

A. Termination Without Cause. Regardless of any terms to the contrary, this Contract may be terminated upon written notice by mutual consent of both parties. The State unilaterally may terminate this contract without cause by giving not less than thirty (30) days' notice in the manner specified in *Section 4, Notice*. If this Contract is unilaterally terminated by the State, Contractor shall use its best efforts to minimize cost to the State and Contractor will not be paid for any cost that Contractor could have avoided.

B. State Termination for Non-Appropriation. The continuation of this Contract beyond the current biennium is subject to and contingent upon sufficient funds being appropriated, budgeted, and otherwise made available by the State Legislature and/or federal sources. The State may terminate this Contract, and Contractor waives any and all claims(s) for damages, effective immediately upon receipt of written notice (or any date specified therein) if for any reason the contracting Agency's funding from State and/or federal sources is not appropriated or is withdrawn, limited, or impaired.

C. Termination with Cause for Breach. A breach may be declared with or without termination. A notice of breach and termination shall specify the date of termination of the Contract, which shall not be sooner than the expiration of the Time to Correct, if applicable, allowed under subsection 10D. This Contract may be terminated by either party upon written notice of breach to the other party on the following grounds:

1) If Contractor fails to provide or satisfactorily perform any of the conditions, work, deliverables, goods, or services called for by this Contract within the time requirements specified in this Contract or within any granted extension of those time requirements; or

2) If any state, county, city, or federal license, authorization, waiver, permit, qualification or certification required by statute, ordinance, law, or regulation to be held by Contractor to provide the goods or services required by this Contract is for any reason denied, revoked, debarred, excluded, terminated, suspended, lapsed, or not renewed; or

3) If Contractor becomes insolvent, subject to receivership, or becomes voluntarily or involuntarily subject to the jurisdiction of the Bankruptcy Court; or

4) If the State materially breaches any material duty under this Contract and any such breach impairs Contractor's ability to perform; or

5) If it is found by the State that any quid pro quo or gratuities in the form of money, services, entertainment, gifts, or otherwise were offered or given by Contractor, or any agent or representative of Contractor, to any officer or employee of the State of Nevada with a view toward securing a contract or securing favorable treatment with respect to awarding, extending, amending, or making any determination with respect to the performing of such contract; or

6) If it is found by the State that Contractor has failed to disclose any material conflict of interest relative to the performance of this Contract.

D. Time to Correct. Unless the breach is not curable, or unless circumstances do not permit an opportunity to cure, termination upon declared breach may be exercised only after service of formal written notice as specified in *Section 4, Notice*, and the subsequent failure of the breaching party within fifteen (15) calendar days of receipt of that notice to provide evidence, satisfactory to the aggrieved party, showing that the declared breach has been corrected. Upon a notice of breach, the time to correct and the time for termination of the contract upon breach under subsection 10C, above, shall run concurrently, unless the notice expressly states otherwise.

E. Winding Up Affairs Upon Termination. In the event of termination of this Contract for any reason, the parties agree that the provisions of this Section survive termination:

1) The parties shall account for and properly present to each other all claims for fees and expenses and pay those which are undisputed and otherwise not subject to set off under this Contract. Neither party may withhold performance of winding up provisions solely based on nonpayment of fees or expenses accrued up to the time of termination;

2) Contractor shall satisfactorily complete work in progress at the agreed rate (or a pro rata basis if necessary) if so requested by the Contracting Agency;

3) Contractor shall execute any documents and take any actions necessary to effectuate an assignment of this Contract if so requested by the Contracting Agency;

4) Contractor shall preserve, protect and promptly deliver into State possession all proprietary information in accordance with *Section 21, State Ownership of Proprietary Information.*

11. **REMEDIES**. Except as otherwise provided for by law or this Contract, the rights and remedies of the parties shall not be exclusive and are in addition to any other rights and remedies provided by law or equity, including, without limitation, actual damages, and to a prevailing party reasonable attorneys' fees and costs. For purposes of an award of attorneys' fees to either party, the parties stipulate and agree that a reasonable hourly rate of attorneys' fees shall be one hundred and fifty dollars ($150.00) per hour. The State may set off consideration against any unpaid obligation of Contractor to any State agency in accordance with NRS 353C.190. In the event that Contractor voluntarily or involuntarily becomes subject to the jurisdiction of the Bankruptcy Court, the State may set off consideration against any unpaid obligation of Contractor to the State or its agencies, to the extent allowed by bankruptcy law, without regard to whether the procedures of NRS 353C.190 have been utilized.

12. **LIMITED LIABILITY**. The State will not waive and intends to assert available NRS Chapter 41 liability limitations in all cases. Contract liability of both parties shall not be subject to punitive damages. Damages for any State breach shall never exceed the amount of funds appropriated for payment under this Contract, but not yet paid to Contractor, for the Fiscal Year budget in existence at the time of the breach. Contractor's tort liability shall not be limited.

13. **FORCE MAJEURE**. Neither party shall be deemed to be in violation of this Contract if it is prevented from performing any of its obligations hereunder due to strikes, failure of public transportation, civil or military authority, act of public enemy, accidents, fires, explosions, or acts of God, including without limitation, earthquakes, floods, winds, or storms. In such an event the intervening cause must not be through the fault of the party asserting such an excuse, and the excused party is obligated to promptly perform in accordance with the terms of the Contract after the intervening cause ceases.

14. **INDEMNIFICATION AND DEFENSE.** To the fullest extent permitted by law, Contractor shall indemnify, hold harmless and defend, not excluding the State's right to participate, the State from and against all liability, claims, actions, damages, losses, and expenses, including, without limitation, reasonable attorneys' fees and costs, arising out of any breach of the obligations of Contractor under this contract, or any alleged negligent or willful acts or omissions of Contractor, its officers, employees and agents. Contractor's obligation to indemnify the State shall apply in all cases except for claims arising solely from the State's own negligence or willful misconduct. Contractor waives any rights of subrogation against the State. Contractor's duty to defend begins when the State requests defense of any claim arising from this Contract.

15. **REPRESENTATIONS REGARDING INDEPENDENT CONTRACTOR STATUS.** Contractor represents that it is an independent contractor, as defined in NRS 333.700(2) and 616A.255, warrants that it will perform all work under this contract as an independent contractor, and warrants that the State of Nevada will not incur any employment liability by reason of this Contract or the work to be performed under this Contract. To the extent the State incurs any employment liability for the work under this Contract; Contractor will reimburse the State for that liability.

16. **INSURANCE SCHEDULE.** Unless expressly waived in writing by the State, Contractor must carry policies of insurance and pay all taxes and fees incident hereunto. Policies shall meet the terms and conditions as specified within this Contract along with the additional limits and provisions as described in *Attachment B*, incorporated hereto by attachment. The State shall have no liability except as specifically provided in the Contract.

Contractor shall not commence work before Contractor has provided the required evidence of insurance to the Contracting Agency. The State's approval of any changes to insurance coverage during the course of performance shall constitute an ongoing condition subsequent to this Contract. Any failure of the State to timely approve shall not constitute a waiver of the condition.

A. Insurance Coverage. Contractor shall, at Contractor's sole expense, procure, maintain and keep in force for the duration of the Contract insurance conforming to the minimum limits as specified in *Attachment B*, incorporated hereto by attachment. Unless specifically stated herein or otherwise agreed to by the State, the required insurance shall be in effect prior to the commencement of work by Contractor and shall continue in force as appropriate until:

1) Final acceptance by the State of the completion of this Contract; or
2) Such time as the insurance is no longer required by the State under the terms of this Contract; whichever occurs later.

Any insurance or self-insurance available to the State shall be in excess of and non-contributing with, any insurance required from Contractor. Contractor's insurance policies shall apply on a primary basis. Until such time as the insurance is no longer required by the State, Contractor shall provide the State with renewal or replacement evidence of insurance no less than thirty (30) days before the expiration or replacement of the required insurance. If at any time during the period when insurance is required by the Contract, an insurer or surety shall fail to comply with the requirements of this Contract, as soon as Contractor has knowledge of any such failure, Contractor shall immediately notify the State and immediately replace such insurance or bond with an insurer meeting the requirements.

B. General Requirements.

1) Additional Insured: By endorsement to the general liability insurance policy, the State of Nevada, its officers, employees and immune contractors as defined in NRS 41.0307 shall be named as additional insureds for all liability arising from the Contract.

2) Waiver of Subrogation: Each insurance policy shall provide for a waiver of subrogation against the State of Nevada, its officers, employees and immune contractors as defined in NRS 41.0307 for losses arising from work/materials/equipment performed or provided by or on behalf of Contractor.

3) Cross Liability: All required liability policies shall provide cross-liability coverage as would be achieved under the standard ISO separation of insureds clause.

4) Deductibles and Self-Insured Retentions: Insurance maintained by Contractor shall apply on a first dollar basis without application of a deductible or self-insured retention unless otherwise specifically agreed to by the State.

Such approval shall not relieve Contractor from the obligation to pay any deductible or self-insured retention. Any deductible or self-insured retention shall not exceed fifty thousand dollars ($50,000.00) per occurrence, unless otherwise approved by the Risk Management Division.

5) Policy Cancellation: Except for ten (10) days notice for non-payment of premiums, each insurance policy shall be endorsed to state that without thirty (30) days prior written notice to the State of Nevada, c/o Contracting Agency, the policy shall not be canceled, non-renewed or coverage and/or limits reduced or materially altered, and shall provide that notices required by this Section shall be sent by certified mail to the address shown on page one (1) of this contract.

6) Approved Insurer: Each insurance policy shall be:

   a) Issued by insurance companies authorized to do business in the State of Nevada or eligible surplus lines insurers acceptable to the State and having agents in Nevada upon whom service of process may be made; and

   b) Currently rated by A.M. Best as "A-VII" or better.

C. Evidence of Insurance.

Prior to the start of any work, Contractor must provide the following documents to the contracting State agency:

1) Certificate of Insurance: The Acord 25 Certificate of Insurance form or a form substantially similar must be submitted to the State to evidence the insurance policies and coverages required of Contractor. The certificate must name the State of Nevada, its officers, employees and immune contractors as defined in NRS 41.0307 as the certificate holder. The certificate should be signed by a person authorized by the insurer to bind coverage on its behalf. The State project/Contract number; description and Contract effective dates shall be noted on the certificate, and upon renewal of the policies listed, Contractor shall furnish the State with replacement certificates as described within *Section 16A, Insurance Coverage.*

   Mail all required insurance documents to the State Contracting Agency identified on Page one of the Contract.

2) Additional Insured Endorsement: An Additional Insured Endorsement (CG 20 10 11 85 or CG 20 26 11 85), signed by an authorized insurance company representative, must be submitted to the State to evidence the endorsement of the State as an additional insured per *Section 16B, General Requirements.*

3) Schedule of Underlying Insurance Policies: If Umbrella or Excess policy is evidenced to comply with minimum limits, a copy of the underlying Schedule from the Umbrella or Excess insurance policy may be required.

4) Review and Approval: Documents specified above must be submitted for review and approval by the State prior to the commencement of work by Contractor. Neither approval by the State nor failure to disapprove the insurance furnished by Contractor shall relieve Contractor of Contractor's full responsibility to provide the insurance required by this Contract. Compliance with the insurance requirements of this Contract shall not limit the liability of Contractor or its subcontractors, employees or agents to the State or others, and shall be in additional to and not in lieu of any other remedy available to the State under this Contract or otherwise. The State reserves the right to request and review a copy of any required insurance policy or endorsement to assure compliance with these requirements.

17. **COMPLIANCE WITH LEGAL OBLIGATIONS.** Contractor shall procure and maintain for the duration of this Contract any state, county, city or federal license, authorization, waiver, permit qualification or certification required by statute, ordinance, law, or regulation to be held by Contractor to provide the goods or services required by this Contract. Contractor shall provide proof of its compliance upon request of the Contracting Agency. Contractor will be responsible to pay all taxes, assessments, fees, premiums, permits, and licenses required by law. Real property and personal property taxes are the responsibility of Contractor in accordance with NRS 361.157 and NRS 361.159. Contractor agrees to be responsible for payment of any such government obligations not paid by its subcontractors during performance of this Contract.

18. **WAIVER OF BREACH**. Failure to declare a breach or the actual waiver of any particular breach of the Contract or its material or nonmaterial terms by either party shall not operate as a waiver by such party of any of its rights or remedies as to any other breach.

19. **SEVERABILITY.** If any provision contained in this Contract is held to be unenforceable by a court of law or equity, this Contract shall be construed as if such provision did not exist and the non-enforceability of such provision shall not be held to render any other provision or provisions of this Contract unenforceable.

20. **ASSIGNMENT/DELEGATION.** To the extent that any assignment of any right under this Contract changes the duty of either party, increases the burden or risk involved, impairs the chances of obtaining the performance of this Contract, attempts to operate as a novation, or includes a waiver or abrogation of any defense to payment by State, such offending portion of the assignment shall be void, and shall be a breach of this Contract. Contractor shall neither assign, transfer nor delegate any rights, obligations nor duties under this Contract without the prior written consent of the State.

21. **STATE OWNERSHIP OF PROPRIETARY INFORMATION**. Any data or information provided by the State to Contractor and any documents or materials provided by the State to Contractor in the course of this Contract ("State Materials") shall be and remain the exclusive property of the State and all such State Materials shall be delivered into State possession by Contractor upon completion, termination, or cancellation of this Contract.

22. **PUBLIC RECORDS**. Pursuant to NRS 239.010, information or documents received from Contractor may be open to public inspection and copying. The State has a legal obligation to disclose such information unless a particular record is made confidential by law or a common law balancing of interests. Contractor may label specific parts of an individual document as a "trade secret" or "confidential" in accordance with NRS 333.333, provided that Contractor thereby agrees to indemnify and defend the State for honoring such a designation. The failure to so label any document that is released by the State shall constitute a complete waiver of any and all claims for damages caused by any release of the records.

23. **CONFIDENTIALITY**. Contractor shall keep confidential all information, in whatever form, produced, prepared, observed or received by Contractor to the extent that such information is confidential by law or otherwise required by this Contract.

24. **FEDERAL FUNDING**. In the event federal funds are used for payment of all or part of this Contract, Contractor agrees to comply with all applicable federal laws, regulations and executive orders, including, without limitation the following:

    A. Contractor certifies, by signing this Contract, that neither it nor its principals are presently debarred, suspended, proposed for debarment, declared ineligible or voluntarily excluded from participation in this transaction by any federal department or agency. This certification is made pursuant to Executive Orders 12549 and 12689 and Federal Acquisition Regulation subpart 9.4, and any relevant program-specific regulations. This provision shall be required of every subcontractor receiving any payment in whole or in part from federal funds.

    B. Contractor and its subcontracts shall comply with all terms, conditions, and requirements of the Americans with Disabilities Act of 1990 (P.L. 101-136), 42 U.S.C. 12101, as amended, and regulations adopted thereunder, including 28 C.F.R. Section 35, inclusive, and any relevant program-specific regulations.

    C. Contractor and it subcontractors shall comply with the requirements of the Civil Rights Act of 1964 (P.L. 88-352), as amended, the Rehabilitation Act of 1973 (P.L. 93-112), as amended, and any relevant program-specific regulations, and shall not discriminate against any employee or offeror for employment because of race, national origin, creed, color, sex, religion, age, disability or handicap condition (including AIDS and AIDS-related conditions.)

25. **LOBBYING**. The parties agree, whether expressly prohibited by federal law, or otherwise, that no funding associated with this Contract will be used for any purpose associated with or related to lobbying or influencing or attempting to lobby or influence for any purpose the following:

    A. Any federal, state, county or local agency, legislature, commission, council or board;

    B. Any federal, state, county or local legislator, commission member, council member, board member, or other elected official; or

C. Any officer or employee of any federal, state, county or local agency; legislature, commission, council or board.

26. **GENERAL WARRANTY**. Contractor warrants that all services, deliverables, and/or work products under this Contract shall be completed in a workmanlike manner consistent with standards in the trade, profession, or industry; shall conform to or exceed the specifications set forth in the incorporated attachments; and shall be fit for ordinary use, of good quality, with no material defects.

27. **PROPER AUTHORITY**. The parties hereto represent and warrant that the person executing this Contract on behalf of each party has full power and authority to enter into this Contract. Contractor acknowledges that as required by statute or regulation this Contract is effective only after approval by the State Board of Examiners and only for the period of time specified in the Contract. Any services performed by Contractor before this Contract is effective or after it ceases to be effective are performed at the sole risk of Contractor.

28. **DISCLOSURES REGARDING CURRENT OR FORMER STATE EMPLOYEES**. For the purpose of State compliance with NRS 333.705, Contractor represents and warrants that if Contractor, or any employee of Contractor who will be performing services under this Contract, is a current employee of the State or was employed by the State within the preceding 24 months, Contractor has disclosed the identity of such persons, and the services that each such person will perform, to the Contracting Agency.

29. **ASSIGNMENT OF ANTITRUST CLAIMS**. Contractor irrevocably assigns to the State any claim for relief or cause of action which Contractor now has or which may accrue to Contractor in the future by reason of any violation of State of Nevada or federal antitrust laws in connection with any goods or services provided under this Contract.

30. **GOVERNING LAW: JURISDICTION**. This Contract and the rights and obligations of the parties hereto shall be governed by, and construed according to, the laws of the State of Nevada, without giving effect to any principle of conflict-of-law that would require the application of the law of any other jurisdiction. The parties consent to the exclusive jurisdiction of and venue in the First Judicial District Court, Carson City, Nevada for enforcement of this Contract, and consent to personal jurisdiction in such court for any action or proceeding arising out of this Contract.

31. **ENTIRE CONTRACT AND MODIFICATION**. This Contract and its integrated attachment(s) constitute the entire agreement of the parties and as such are intended to be the complete and exclusive statement of the promises, representations, negotiations, discussions, and other agreements that may have been made in connection with the subject matter hereof. Unless an integrated attachment to this Contract specifically displays a mutual intent to amend a particular part of this Contract, general conflicts in language between any such attachment and this Contract shall be construed consistent with the terms of this Contract. Unless otherwise expressly authorized by the terms of this Contract, no modification or amendment to this Contract shall be binding upon the parties unless the same is in writing and signed by the respective parties hereto and approved by the Office of the Attorney General and the State Board of Examiners. This Contract, and any amendments, may be executed in counterparts

[This section intentionally left blank]

CETS# 22195

IN WITNESS WHEREOF, the parties hereto have caused this Contract to be signed and intend to be legally bound thereby.

Pondera Solutions, LLC

By: Shawn A. Kirsch 08/16/19 Sr. Vice President

Independent Contractor's Signature — Date — Independent Contractor's Title

Steve H. Fisher 10/8/19 Administrator, Division of Welfare and Supportive Services

Steve H. Fisher — Date — Title

FOR Richard Whitley 10-23-14 Director, Department of Health and Human Services

Richard Whitley — Date — Title

APPROVED BY BOARD OF EXAMINERS

Signature – Board of Examiners

On: 12-10-14

Date

Approved as to form by:

Deputy Attorney General for Attorney General

On: 9/18/19

Date

Attachment A

Contract Terms for Pondera

Contract Term	Contract Quantity	Additional
Recipient Validation	412,000 Profiles	Up to 10% increase @ no charge, Additional Recipients @$1.25/ profile/ year.
Retailer Validation	1,800 Profiles	Included as part of recipient fee
Flags, Geospatial Analysis, Data Matching, Dashboard, Street View	Various	Included as part of recipient fee
Annual Maintenance	$194,640	Jan. 1, 2020- Dec 31, 2023 3% increase each year
Super User Bundle (Social Network, Public Records, Social Intelligence lookups)	5 Users	Included in annual maintenance
Case Management	80 Users	Additional Case Users @ $1,800/user/year.
SIU Support	4 Cases / year	Included in annual maintenance

ATTACHMENT B

INSURANCE SCHEDULE

INDEMNIFICATION CLAUSE:

Contractor shall indemnify, hold harmless and, not excluding the State's right to participate, defend the State, its officers, officials, agents, and employees (hereinafter referred to as "Indemnitee") from and against all liabilities, claims, actions, damages, losses, and expenses including without limitation reasonable attorneys' fees and costs, (hereinafter referred to collectively as "claims") for bodily injury or personal injury including death, or loss or damage to tangible or intangible property caused, or alleged to be caused, in whole or in part, by the negligent or willful acts or omissions of Contractor or any of its owners, officers, directors, agents, employees or subcontractors. This indemnity includes any claim or amount arising out of or recovered under the Workers' Compensation Law or arising out of the failure of such contractor to conform to any federal, state or local law, statute, ordinance, rule, regulation or court decree. It is the specific intention of the parties that the Indemnitee shall, in all instances, except for claims arising solely from the negligent or willful acts or omissions of the Indemnitee, be indemnified by Contractor from and against any and all claims. It is agreed that Contractor will be responsible for primary loss investigation, defense and judgment costs where this indemnification is applicable. In consideration of the award of this contract, the Contractor agrees to waive all rights of subrogation against the State, its officers, officials, agents and employees for losses arising from the work performed by the Contractor for the State.

INSURANCE REQUIREMENTS:

Contractor and subcontractors shall procure and maintain until all of their obligations have been discharged, including any warranty periods under this Contract are satisfied, insurance against claims for injury to persons or damage to property which may arise from or in connection with the performance of the work hereunder by the Contractor, his agents, representatives, employees or subcontractors.

The insurance requirements herein are minimum requirements for this Contract and in no way limit the indemnity covenants contained in this Contract. The State in no way warrants that the minimum limits contained herein are sufficient to protect the Contractor from liabilities that might arise out of the performance of the work under this contract by the Contractor, his agents, representatives, employees or subcontractors and Contractor is free to purchase additional insurance as may be determined necessary.

A. **MINIMUM SCOPE AND LIMITS OF INSURANCE:** Contractor shall provide coverage with limits of liability not less than those stated below. An excess liability policy or umbrella liability policy may be used to meet the minimum liability requirements provided that the coverage is written on a "following form" basis.

1. **Commercial General Liability – Occurrence Form**
   Policy shall include bodily injury, property damage and broad form contractual liability coverage.
   - General Aggregate $2,000,000
   - Products – Completed Operations Aggregate $1,000,000
   - Personal and Advertising Injury $1,000,000
   - Each Occurrence $1,000,000

   a. The policy shall be endorsed to include the following additional insured language: "The State of Nevada shall be named as an additional insured with respect to liability arising out of the activities performed by, or on behalf of the Contractor".

2. **Automobile Liability**
   Bodily Injury and Property Damage for any owned, hired, and non-owned vehicles used in the performance of this Contract.

   Combined Single Limit (CSL) $1,000,000

   a. The policy shall be endorsed to include the following additional insured language: "The State of Nevada shall be named as an additional insured with respect to liability arising out of the activities performed by, or on behalf of the Contractor, including automobiles owned, leased, hired or borrowed by the Contractor".

3. **Worker's Compensation and Employers' Liability**

Workers' Compensation	Statutory
Employers' Liability	
Each Accident	$100,000
Disease – Each Employee	$100,000
Disease – Policy Limit	$500,000

   a. Policy shall contain a waiver of subrogation against the State of Nevada.

   b. This requirement shall not apply when a contractor or subcontractor is exempt under N.R.S., **AND** when such contractor or subcontractor executes the appropriate sole proprietor waiver form.

B. **ADDITIONAL INSURANCE REQUIREMENTS:** The policies shall include, or be endorsed to include, the following provisions:

1. On insurance policies where the State of Nevada is named as an additional insured, the State of Nevada shall be an additional insured to the full limits of liability purchased by the Contractor even if those limits of liability are in excess of those required by this Contract.
2. The Contractor's insurance coverage shall be primary insurance and non-contributory with respect to all other available sources.

C. **NOTICE OF CANCELLATION:** Each insurance policy required by the insurance provisions of this Contract shall provide the required coverage and shall not be suspended, voided or canceled except after thirty (30) days prior written notice has been given to the State, except when cancellation is for non-payment of premium, then ten (10) days prior notice may be given. Such notice shall be sent directly to **Contract Manager, Division of Welfare and Supportive Services, 1470 College Parkway, Carson City NV 89706**.

D. **ACCEPTABILITY OF INSURERS:** Insurance is to be placed with insurers duly licensed or authorized to do business in the state of Nevada and with an "A.M. Best" rating of not less than A- VII. The State in no way warrants that the above-required minimum insurer rating is sufficient to protect the Contractor from potential insurer insolvency.

E. **VERIFICATION OF COVERAGE:** Contractor shall furnish the State with certificates of insurance (ACORD form or equivalent approved by the State) as required by this Contract. The certificates for each insurance policy are to be signed by a person authorized by that insurer to bind coverage on its behalf.

All certificates and any required endorsements are to be received and approved by the State before work commences. Each insurance policy required by this Contract must be in effect at or prior to commencement of work under this Contract and remain in effect for the duration of the project. Failure to maintain the insurance policies as required by this Contract or to provide evidence of renewal is a material breach of contract.

All certificates required by this Contract shall be sent directly to **Contract Manager, Division of Welfare and Supportive Services, 1470 College Parkway, Carson City NV 89706**. The State project/contract number and project description shall be noted on the certificate of insurance. The State reserves the right to require complete, certified copies of all insurance policies required by this Contract at any time.

F. **SUBCONTRACTORS:** Contractors' certificate(s) shall include all subcontractors as additional insureds under its policies **or** Contractor shall furnish to the State separate certificates and endorsements for each subcontractor. All coverages for subcontractors shall be subject to the minimum requirements identified above.

G. **APPROVAL:** Any modification or variation from the insurance requirements in this Contract shall be made by the Attorney General's Office or the Risk Manager, whose decision shall be final. Such action will not require a formal Contract amendment, but may be made by administrative action.

ATTACHMENT C
SCOPE OF WORK

Purpose:
To provide continued maintenance and support for the Division of Welfare and Supportive Services' Fraud Detection and Case Tracking System.

1) The Division of Welfare and Supportive Services (DWSS) agrees to:

   a) Work with contractor to maintain compliance with Data security and integrity requirements.

   b) To provide the appropriate technical and management staff to ensure successful communication on the Division's needs throughout contract maintenance.

   c) Maintain a list of users and provide the contractor updates to the list as needed for any added or removed users.

2) The Contractor agrees to:

   a) Support DWSS in their utilization of the Fraud Detection Software as a Service and Case Tracking System to ensure it continues to specifically meet the needs of the Division
   b) Continue to enhance the software, including alerts, geospatial maps, profiles with fraud indicators, recipient scorecard, and integrated case tracking system, as new fraud trends emerge and division priorities shift.

3) Both Parties agree to:
   a) This scope of work shall become part of the contract between both parties attached.

   b) Information obtained shall not be disclosed, except to individuals expressly authorized to review such information under federal and state laws including applicants, recipients or individuals acting on behalf of such applicants or recipients. Nor records or any information acquired shall be disclosed except as expressly authorized under Federal and State laws and regulations.

4) Billing and Payment process:

   The contractor will submit an invoice to the Division of Welfare and Supportive Services (DWSS), Accounting Division, 1470 College Parkway, Carson City, Nevada, 89706, for reimbursement of services no later than the 10th calendar day of the month following the month service was provided. Invoices will include sufficient documentation and detail to support claimed invoice. All invoices for June of each year must be received by DWSS no later than *the third Friday in July* of the same year to avoid processing the June invoice as a stale dated claim for that fiscal year.

DATA USE AGREEMENT

This Data Use Agreement ("Agreement") is made by and between State of Nevada, Division of Welfare and Supportive Services ("Customer") and Pondera Solutions, LLC ("User") pursuant to which Customer agrees to provide User with data that resides in Customer's_____program systems of record as identified in Section 5 of this Agreement. In exchange, the User agrees to use the data only for purposes that support the project referenced in Section 3 of this Agreement. User agrees to ensure the integrity, security, and confidentiality of the data by complying with the terms of this Agreement and applicable law, including the Privacy Act and the Health Insurance Portability and Accountability Act.

1. This Agreement addresses the conditions under which Customer will disclose and the User will obtain, use, reuse and disclose the Customer dataset(s) specified in Section 5 and/or any derivative dataset(s) that contain direct individual identifiers or elements that can be used in concert with other information to identify individuals. The terms of this Agreement can be changed only by a written modification to this Agreement or by the parties adopting a new agreement. The parties agree further that instructions or interpretations issued to the User concerning this Agreement or the data specified herein, shall not be valid unless issued in writing by Customer.

2. The parties mutually agree that Customer retains all ownership rights to the dataset(s) referred to in Section 5 of this Agreement, and that the User does not obtain any right, title, or interest in any of the data furnished by Customer.

3. The User represents, and in furnishing the dataset(s) specified in Section 5 Customer relies upon such representation, that such dataset(s) will be used solely for the purpose(s) of implementing, maintaining, and operating the Pondera Fraud System for Customer.

4. The User agrees not to disclose, sell, rent, lease, loan, use or reuse, or otherwise grant access to the data covered by this Agreement except as specified in this Agreement or except as Customer shall authorize in writing or as otherwise required by law. The User affirms that the requested data is the minimum necessary to achieve the purposes stated in this Agreement. The User agrees that, within the User organization and the organizations of its agents, access to the data covered by this Agreement shall be limited to the minimum amount of data and minimum number of individuals necessary to achieve the purpose stated in this Agreement (i.e., individual's access to the data will be on a need-to-know basis).

5. The following Customer dataset(s) is/are covered under this Agreement:

Dataset	Description	Source System	Source
FIS_CLIENT_TRANSACTION	SNAP Transactional Data	FIS	DWSS
FIS_GRANTS_REPORT	Recipient Benefits	FIS	DWSS
FIS_GRANT_REPORT_SPECIAL	Recipient Benefits	FIS	DWSS
IPV_RECIPIENT	Intentional Program Violation (IPV)	IPV	DWSS
IRIS_CASE	Referrals Case Management	IRIS	DWSS
IRIS_CLIENT_REFERRAL	Referrals	IRIS	DWSS
IRIS_GROUP_HOME_MEMBER	No Data	IRIS	DWSS
IRIS_GROUP_HOME_REFERRAL		IRIS	DWSS
IRIS_UNREPORTED_EMPLOYMENT	Referrals for unreported employment	IRIS	DWSS
IRIS_UNREPORTED_INCOME	Referrals for unreported income	IRIS	DWSS
IRIS_UNREPORTED_MEMBER	Referrals for unreported household members	IRIS	DWSS
IRIS_UNREPORTED_RESOURCES	Referrals for unreported assets	IRIS	DWSS
JPM_CARD	Recipient EBT card	J.P. Morgan	DWSS
JPM_CLIENT_TRANSACTION	SNAP Transactional Data	J.P. Morgan	DWSS
JPM_GRANTS_REPORT	Recipient	J.P. Morgan	DWSS
NEVADA_DEATH	Vital Records	UNKNOWN	DWSS
NOMAD_ALIEN	Citizenship Information	NOMAD	DWSS
NOMAD_ALT_PAYEE		NOMAD	DWSS
NOMAD_AUTH_REP	Authorized Representative	NOMAD	DWSS
NOMAD_BUDGET		NOMAD	DWSS
NOMAD_CASE_ADDRESS	Recipient Address	NOMAD	DWSS
NOMAD_CASE_INDEX	Recipient and Case Information	NOMAD	DWSS
NOMAD_GROUP_LIVING	Recipient and Group Living Information	NOMAD	DWSS
NOMAD_INMATE	State of Nevada Incarceration Data	NOMAD	DWSS
NOMAD_JOB	Recipient Employment Information	NOMAD	DWSS
NOMAD_JOB_PAY	Recipient Employment Wages	NOMAD	DWSS
NOMAD_NON_CUSTODIAL_PARENT	Relationships to Children of non-custodial individuals	NOMAD	DWSS
NOMAD_PERSON_BANK	Recipient Bank Information	NOMAD	DWSS
NOMAD_PERSON_CHILD	Recipient and related children	NOMAD	DWSS
NOMAD_PERSON_CUSTODIAL	Relationships to Children	NOMAD	DWSS
NOMAD_PERSON_HISTORY	Recipient History	NOMAD	DWSS
NOMAD_PROG_ELIG	Recipient Eligibility	NOMAD	DWSS
PARIS_FEDERAL	Public Assistance Reporting Information System (PARIS)	PARIS	DWSS
PARIS_INTERSTATE	PARIS	PARIS	DWSS
PARIS_VA	PARIS - Veterans Affairs	PARIS	DWSS
RETAILER	Retailer Facility Information	UNKNOWN	DWSS
SHELTER	Shelter Locations	UNKNOWN	DWSS
TWNPERSON_DISQL	Disqualified from Program Information		DWSS
TWNDBCH	Debt Collection History	UNKNOWN	DWSS
TWNDBCX	Debt Claim Transfer	UNKNOWN	DWSS
TWNDBMS	Debt Monthly Stats	UNKNOWN	DWSS
TWNDBTR	Debtor Details	UNKNOWN	DWSS
TWNDBYS	Debt YTD Stats	UNKNOWN	DWSS
TWNDEBT	Debt Info	UNKNOWN	DWSS
TWNDEMR	Debt Match Request Info	UNKNOWN	DWSS
TWNDERP	Debt Responsible Person	UNKNOWN	DWSS
TWNDRTP	DRT Payments	UNKNOWN	DWSS
TWNIPVC	IPV Charges	UNKNOWN	DWSS
TWNIRAL	IR Alerts	UNKNOWN	DWSS
TWNIREO	IR Eligibility Overpayments	UNKNOWN	DWSS
TWNIRPS	IR DRT Payment Summary	UNKNOWN	DWSS

TWNPRCD	Program Case Debt	UNKNOWN	DWSS
TWNPRDQ	Person Disqualification	UNKNOWN	DWSS
TWNPRSN	Person	UNKNOWN	DWSS
TWNREPD	Responsible Person Debtor	UNKNOWN	DWSS
TWNRPAT	RPM Audit Trail	UNKNOWN	DWSS

6. The parties mutually agree that the aforesaid dataset(s), including those datasets that directly identify individuals, and those datasets that can be used in concert with other information to identify individuals, may be retained by the User until the expiration or earlier termination of the contract between Customer and User for the project identified in Section 3 hereinafter known as the "Retention Date." The User agrees to destroy Customer's data and send written certification of the destruction of the data to Customer within 30 days of the Retention Date. The User agrees not to retain Customer data or any parts thereof, after such dataset(s) are destroyed unless the Customer identified authorized individual grants written authorization.

7. The Agreement is coterminous with the contract between Customer and User for the project identified in Section 3 of this Agreement.

8. The User agrees to establish appropriate administrative, technical, and physical safeguards to protect the confidentiality, integrity, and availability of the data and to prevent unauthorized use or access to it. The safeguards shall adhere to all applicable laws, regulations, and industry standards.

9. The User agrees to grant access to the data to the authorized representatives of Customer for the purpose of inspecting to confirm compliance with the terms of this Agreement.

10. The User agrees not to disclose direct findings, listings, or information derived from the dataset(s) specified in Section 5 with or without direct identifiers, if such findings, listings, or information can, by themselves or in combination with other data, be used to deduce an individual's identity.

11. The User agrees that in the event Customer determines or has a reasonable belief that the User has made or may have made a use, reuse or disclosure of the datasets identified in Section 5 that is not authorized by this Agreement or another written authorization from Customer, Customer, at its sole discretion, may require the User to: (a) promptly investigate and report to Customer the User's determinations regarding any alleged or actual unauthorized use, reuse or disclosure, (b) promptly resolve any problems identified by the investigation; (c) if requested by Customer, submit a formal response to an allegation of unauthorized use, reuse or disclosure; (d) if requested by Customer, submit a corrective action plan with steps designed to prevent any future unauthorized uses, reuses or disclosures; and (e) if requested by Customer, return datasets to Customer or destroy the datasets it received from Customer under this Agreement. The User understands that, as a result of Customer's determination or reasonable belief that unauthorized uses, reuses or disclosures have taken place, Customer may refuse to release further Customer data to the User for a period of time to be determined by Customer.

    The User agrees to report any breach of personally identifiable information (PII) from the Customer dataset(s), loss of these data or disclosure to any unauthorized persons to Customer within eight (8) hours of discovering the breach and to cooperate fully in the Customer's security incident process. While Customer retains all ownership rights to the dataset(s), as outlined above, the User shall bear the cost and liability for any breaches of PII from the dataset(s) while they are entrusted to the User.

    Furthermore, if Customer determines that the risk of harm requires notification of affected individual persons of the security breach and/or other remedies, the User agrees to carry out these remedies without cost to Customer.

12. The User hereby acknowledges that criminal penalties under §1106(a) of the Social Security Act (42 U.S.C. § 1306(a)), including a fine not exceeding $10,000 or imprisonment not exceeding 5 years, or both, may apply to disclosures of information that are covered by § 1106 and that are not authorized by regulation or by Federal law. The User further acknowledges that criminal penalties under the Privacy Act (5 U.S.C. § 552a(i) (3)) may apply if it is determined that the Requestor or Custodian, or any individual employed or affiliated therewith, knowingly and willfully obtained the data(s) under false pretenses. Any person found to have violated sec. (i)(3) of the Privacy Act shall be guilty of a misdemeanor and fined not more than $5,000. Finally, the User acknowledges that criminal

penalties may be imposed under 18 U.S.C. § 641 if it is determined that the User, or any individual employed or affiliated therewith, has taken or converted to his own use dataset(s), or received the dataset(s) knowing that they were stolen or converted. Under such circumstances, they shall be fined under Title 18 or imprisoned not more than 10 years, or both; but if the value of such property does not exceed the sum of $1,000, they shall be fined under Title 18 or imprisoned not more than 1 year, or both.

13. By signing this Agreement, the User agrees to abide by all provisions set out in this Agreement and acknowledges having received notice of potential criminal or administrative penalties for violation of the terms of the Agreement.

14. On behalf of the User the undersigned individual hereby attests that he or she is authorized to legally bind the User to the terms this Agreement and agrees to all the terms specified herein.

Name and Title of User Representative: Greg Loos, President
Company: Pondera Solutions, LLC.
Address: 80 Blue Ravine Road, Suite 250, Folsom, CA 95630
Telephone: (916) 389-7800
Email: gloos@ponderasolutions.com

9-11-19

Signature and Date

15. The parties mutually agree that the following named individual is designated as custodian of the dataset(s) on behalf of the User and will be the person responsible for the observance of all conditions of use and for establishment and maintenance of security arrangements as specified in this Agreement to prevent unauthorized use. The User agrees to notify Customer within fifteen (15) days of any change of custodianship. The parties mutually agree that Customer may disapprove the appointment of a custodian or may require the appointment of a new custodian at any time.

The custodian hereby acknowledges his/her appointment as custodian of the aforesaid dataset(s) on behalf of the User, and agrees to comply with all of the provisions of this Agreement on behalf of the User.

Name and Title of User Custodian: Adi Kremer, Information Security Officer
Company: Pondera Solutions, LLC.
Address: 80 Blue Ravine Road, Suite 250, Folsom, CA 95630
Telephone: (916) 389-7800
Email: akremer@ponderasolutions.com

09/11/2019

Signature and Date

16. The parties mutually agree that the following named individual will be designated as the "point-of-contact" for the Agreement on behalf of Customer:

Name and Title of Customer point-of-contact:	John Dekoekkoek, MA III	Jesse Stephenson, SSPS III
Address:	1470 College Parkway Carson City, NV 89706	3330 E Flamingo Las Vegas, NV 89121
Telephone	(775) 684-0568	(702) 486-8890
Email:	jdekkoekkoek@dwss.nv.gov	jstephenson@dwss.nv.gov

9.16.2019

Signature and Date

17. On behalf of Customer the undersigned individual hereby attests that he or she is authorized to enter into this Agreement and agrees to all the terms specified herein.

Name and Title of Customer point-of-contact: Steve H. Fisher, Administrator
Customer: Nevada Department of Health and Human Services, Division of Welfare and Supportive Services
Address: 1470 College Parkway, Carson City, NV 89706
Telephone: (775) 684-0500

10/8/19

Signature and Date

ATTACHMENT E – FEDERAL LAWS AND AUTHORITIES

Following is a list of Federal Laws and Authorities with which the awarded vendor will be required to comply.

ENVIRONMENTAL:

1. Archeological and Historic Preservation Act of 1974, PL 93-291
2. Clean Air Act, 42 U.S.C. 7506(c)
3. Endangered Species Act 16 U.S.C. 1531, ET seq.
4. Executive Order 11593, Protection and Enhancement of the Cultural Environment.
5. Executive Order 11988, Floodplain Management
6. Executive Order 11990, Protection of Wetlands
7. Farmland Protection Policy Act, 7 U.S.C. 4201 ET seq.
8. Fish and Wildlife Coordination Act, PL 85-624, as amended
9. National Historic Preservation Act of 1966, PL 89-665, as amended
10. Safe Drinking Water Act, Section 1424(e), PL 92-523, as amended

ECONOMIC:

1. Demonstration Cities and Metropolitan Development Act of 1966, PL 89-754, as amended
2. Section 306 of the Clean Air Act and Section 508 of the Clean Water Act, including Executive Order 11738, Administration of the Clean Air Act and the Federal Water Pollution Control Act with Respect to Federal Contracts, Grants or Loans

SOCIAL LEGISLATION

1. Age Discrimination Act, PL 94-135
2. Civil Rights Act of 1964, PL 88-352
3. Section 13 of PL 92-500; Prohibition against sex discrimination under the Federal Water Pollution Control Act
4. Executive Order 11246, Equal Employment Opportunity
5. Executive Orders 11625 and 12138, Women's and Minority Business Enterprise
6. Rehabilitation Act of 1973, PL 93, 112

MISCELLANEOUS AUTHORITY:

1. Uniform Relocation and Real Property Acquisition Policies Act of 1970, PL 91-646
2. Executive Order 12549 – Debarment and Suspension